

be assessed separately for each individual request. The board concluded that the examining division had been entitled to exercise discretion and had done so in accordance with criteria which were essentially correct in the light of G 7/93, but that, contrary to R 111(2) EPC, it had failed to give adequate reasons in support of its exercise of discretion in the contested decision. Discretionary decisions could not be taken arbitrarily and – like all decisions open to appeal – had to be substantiated.

In T 246/08 the board stated that according to the established case law of the boards of appeal the power of the examining division to consent to amendments under R 137(3) EPC was a discretionary power that had to be exercised after considering all the relevant factors of the specific case and balance in particular the applicant's interest in obtaining an adequate protection for his invention and the EPO's interest in bringing the examination to a close in an effective and speedy way. Moreover, the exercise of a discretionary power had to be reasoned, otherwise it would be arbitrary. It followed that a refusal of consent to amend made in advance of any amendment being submitted could not be a reasonable exercise of discretion pursuant to R 137(3) EPC. Indeed it was ipso facto a substantial procedural violation since it risked deterring an applicant from making an amendment which could not reasonably have been forbidden. See also T 872/90.

In T 233/12 the board pointed out that the criterion that an amended set of claims was prima facie not allowable was, in general, an accepted principle (amongst others) to be taken into account in the assessment of whether consent under R 137(3) EPC should be given to the amendment. While a prima facie finding that a claim was not allowable may, by its very nature, be justified in briefer terms than a fully reasoned conclusion, the reasons for a prima facie finding may not be so short as to reduce the finding to a mere allegation. Moreover, the amount of reasoning required to justify a prima facie finding was amongst the parameters which the examining division had to balance in view of the circumstances of each individual case when exercising its discretion. In particular, if an applicant filed an amendment together with arguments as to why the amendment, in its view, satisfied a particular requirement of the EPC, the examining division could not merely assert the contrary without giving an indication as to why the applicant's argument failed. That is, a prima facie finding must not simply ignore the arguments on file which appear to directly contradict it.

2.4.6 Requests for amendments filed at an advanced stage in proceedings

According to the Guidelines, any request by an applicant to replace the text of the application on the basis of which a patent could be granted by a text that has been extensively revised should be refused, unless the applicant gives good reasons for proposing the changes only at this stage in the proceedings (Guidelines H-II, 2.4 – March 2022 version).

In T 222/21 the board noted that Guidelines H-II, 2.4 (November 2019 version) was incomplete insofar as it merely referred to the criterion of whether the text was "extensively revised", i.e. a quantitative criterion. It held that this point should be read in conjunction with point H-II, 2.5.1 of the Guidelines ("Criteria for admitting such amendments"). It followed from these two points, read in conjunction, that what mattered for the exercise of

the discretion to admit or not to admit, if the text was extensively revised, was the content of the amendments and the consequential amount of time for examination that the amendments prima facie required. It was this amount of time that determined whether the amendments were extensive.

2.4.7 Late-filed requests after summons to oral proceedings in examination

The examining division will first consider the requests before deciding on their admissibility. The mere fact that they are filed late is not per se a reason for not admitting them. In exercising its discretion under R. 137(3) EPC (see G. 7/93), the examining division should take into account whether the applicant has good reasons for filing the request late (Guidelines H-II, 2.7 – March 2022 version).

The examining division will also apply the criterion of "clear allowability" in exercising its discretion under R. 137(3) EPC for treating requests filed after the final date set in accordance with R. 116(2) EPC without proper justification (Guidelines H-II, 2.7.1 – March 2022 version; see also T. 153/85, OJ 1988, 1).

In T. 102/15 the board found that the examining division's reasons for refusing to admit the then auxiliary requests 6 to 8 – namely that, prima facie, they did not overcome the objections of a lack of inventive step and their extension beyond the content of the application as filed – showed that it had followed the approach set out in the Guidelines and concluded that the requests had already failed at the first hurdle in the assessment of admissibility. Auxiliary requests 6 to 8 were filed with the examining division the day before the oral proceedings, i.e. after the date fixed under R. 116 EPC in the summons. The examining division had, the board held, exercised its discretion under R. 137(3) EPC reasonably and – in applying the "clear allowability" test – in accordance with the right criteria. The board saw no reason to exercise its own discretion under Art. 12(4) RPBA 2007 differently.

2.4.8 Second communication under Rule 71(3) EPC: the consent of the examining division

If the examining division gives its consent under R. 137(3) EPC to these amendments and/or the correction and considers them allowable without issuing a further communication under Art. 94(3) EPC, it issues a second communication under R. 71(3) EPC based on the amended/corrected text, after which it then proceeds to the grant of the patent pursuant to Art. 97(1) EPC (see below in this chapter IV.B.3.1. "Informing applicant of the text intended for grant (Rule 71(3) EPC)").

In T. 816/19 the board accepted that, in the light of Guidelines C-V, 1.1 (November 2017 version), and the nature of the proposed amendments, it was debatable whether it was wise to propose these amendments in a communication under R. 71(3) EPC without first consulting the applicant. However, even if an amendment proposed in a communication under R. 71(3) EPC was inappropriate, no fundamental loss of rights was at stake since the applicant always retained the right to disapprove such an amendment (pursuant to Art. 113(2) EPC) thereby triggering either a new communication under R. 71(3) EPC or a resumption of examination proceedings, pursuant to R. 71(6) EPC.

2.5. Failure to reply to the communication from the examining division (Article 94(4) EPC)

According to Art. 94(4) EPC, if the applicant fails to reply in due time to any communication from the examining division, the application shall be deemed to be withdrawn. Art. 94(4) EPC corresponds in essence to Art. 96(3) EPC 1973.

2.5.1 Reply within the meaning of Article 94(4) EPC

In J 37/89 (OJ 1993, 201), the Legal Board noted that requesting in good time a time-limit extension could also be regarded as a timely answer, even if it did not address the matter at issue. Applicants' answers did not have to contain relevant matter enabling the examining division to alter the view expressed in its communication for a loss of rights under Art. 96(3) EPC 1973 to be avoided. However, an applicant who merely requests an extension of the term for reply which request is then refused, 'fails to reply' within the meaning of that sub-paragraph, with the consequence that the application must be deemed withdrawn.

In T 160/92 (OJ 1995, 35) the board held that Art. 96(3) EPC 1973 did not require "a complete reply", but only "a reply" in order to avoid the consequence of having the application deemed to be withdrawn. A letter of reply to a communication of the examining division filed in due time by the applicant and dealing with substantial points of this communication constituted a reply within the meaning of Art. 96(3) EPC 1973 and thus, from the point of view of procedural law, ruled out the possibility of deemed withdrawal.

In J 29/94 (OJ 1998, 147) the Legal Board observed – in relation to Art. 110(3) EPC 1973 – that there was another form of reply which could result in a refusal, and not in the deemed withdrawal of the application; if the applicant did not want to reply in substance to the communication, it was permissible for him to ask for a decision on the file as it stood. In T 685/98 (OJ 1999, 346) the board noted that this type of reply was in effect a waiver of the right under Art. 113(1) EPC to present comments in relation to the disclosed deficiencies. It concluded, with reference also to J 3/89 and T 160/92 that prior to a valid refusal the applicant must either have exercised his right to comment or have waived this right.

In J 5/07 the Legal Board held that the filing of a divisional application did not constitute a response to an invitation by the examining division in the parent application within the meaning of Art. 96(3) EPC 1973. The Legal Board noted that a divisional application was legally and administratively separate and independent from the grant proceedings concerning the parent application (see G 1/05, OJ 2008, 271; T 441/92). The filing of a divisional application left the text of the patent application objected to unamended.

In T 861/03 the board found that filing a request for an interview with the processing examiner without also submitting substantive observations on deficiencies identified in the communication under Art. 96(2) EPC 1973 did not amount to an adequate reply for the purposes of Art. 96(3) EPC 1973, under which the legal consequence of failing to submit such a reply was that the application was deemed to be withdrawn.

2.5.2 Waiver of the applicant's right to present comments

In T 685/98 (OJ 1999, 346) the board held that in unclear cases there could be no presumption that an applicant had waived his right to be heard under Art. 113(1) EPC. The board noted that prior to a valid refusal under Art. 97(1) EPC 1973 the applicant must either have exercised his right to comment or have waived this right (see also T 685/98, OJ 1999, 346). It held that a simple procedural request made by the applicant after receipt of the R. 51(2) EPC 1973 communication could not be treated as a waiver of the right to present comments during the remainder of the four-month term set for reply. When the applicant neither replied in substance to the objections raised nor waived his right to present comments, then the refusal of the application was ultra vires and voidable ab initio because under Art. 97(1) EPC 1973 the application was to be refused if no different sanction was provided for by the EPC. However, Art. 96(3) EPC 1973 provides a different sanction for failure to reply, namely the deemed withdrawal of the application.

2.6. Issuing a further communication in light of Article 113(1) EPC

2.6.1 Introduction

If it appears that the previous communications were insufficiently reasoned or incomplete, or if the applicant has filed amendments and/or arguments since the previous communication, the examiner should carefully consider Art. 113(1) EPC before issuing a refusal. A further communication may have to be issued with sufficient reasoning, unless oral proceedings are to be held (see Guidelines C-V, 15.4 – March 2022 version).

Under Art. 113(1) EPC, the decisions of the EPO may only be based on grounds or evidence on which the parties concerned have had an opportunity to present their comments.

In T 645/11 the board stated that Art. 113(1) EPC 1973 guaranteed that proceedings before the EPO would be conducted openly and fairly (see J 20/85, OJ 1987, 102; J 3/90, OJ 1991, 550). The right to be heard ensures that the parties to proceedings are not taken by surprise by grounds mentioned in an adverse decision (see e.g. T 669/90, OJ 1992, 739; T 892/92, OJ 1994, 664). That requires, firstly, that a party be given an opportunity to comment on the grounds and evidence alleged against it. In particular, it means that if a decision to refuse is taken on the basis of grounds which have not previously been presented to the applicant, then the decision does not comply with the provisions of Art. 113(1) EPC 1973. It is not sufficient that the applicant be presented with an assertion that the application fails to comply with some provision of the EPC. There must also be an explanation of why it fails to comply. The right to be heard also requires the deciding instance demonstrably to hear and consider any relevant comments (see T 763/04, T 246/08).

In T 690/09 the board stated that if a request for amendment was refused, the examining division must inform the applicant of the reasons for not admitting the amendments in order to satisfy the right to be heard according to Art. 113(1) EPC. The applicant would typically be invited to request grant on the basis of a preceding acceptable version of the claim set

if such a version existed. Otherwise, if the applicant maintained his request for amendment, the application had to be refused under Art. 97(2) EPC, since there was no text which had been approved by the applicant and allowed by the examining division (see Art. 113(2) EPC 1973, see also T 647/93, OJ 1995, 132; T 946/96; T 237/96).

In T 246/08 the board stated that established case law had interpreted Art. 113(1) EPC 1973 to mean that the comments presented must be considered in the ensuing decision (J 7/82, OJ 1982, 391). Thus a decision which failed to take explicitly into account potentially refutative arguments submitted by a party, i.e. arguments which may militate against or cast doubt on the decision in question, contravened Art. 113(1) EPC 1973, thereby constituting a substantial procedural violation. In brief, a decision must show that all potentially refutative arguments adduced by a party are actually refutable. See also T 1170/07.

In T 1854/08 the applicant was informed by e-mail that the three newly filed requests were not admitted into the proceedings because they introduced substantial obscurities. The board stated that the applicant had not been given any opportunity to present his comments to overcome the negative position expressed in the e-mail. Contrary to that, he had gathered from the e-mail that it was no longer possible to convince the examining division. This followed from the fact that the refusal to admit the newly filed request was not presented as a provisional opinion of the division but as a decision which could not be overturned. This contravened Art. 113(1) EPC.

2.6.2 Arguments taken into account in the decision of the examining division

According to the case law of the boards of appeal, the examining division does not have to address each of the party's arguments (see e.g. T 1969/07, T 1557/07, R 19/10).

In T 1557/07 the board stated that with regard to the allegation that the examining division did not fully and accurately deal with all the relevant arguments submitted by the applicants, the examining division was under no obligation to address each and every argument presented by the party concerned. In the case in hand, the examining division had commented on the crucial points of dispute thus giving the applicants a fair idea of why their submissions were not considered convincing. This allegation was therefore also not conclusive. In conclusion, the examining division had not committed a substantial procedural violation.

In R 19/10 the petitioner submitted that Art. 113(1) EPC not only enshrined a party's right to be heard before a decision was issued against it, but also guaranteed its right to have the relevant grounds fully taken into account in the written decision. The Enlarged Board stated that this principle was not without any limitation, as explained in T 1557/07: provided that the reasons given enable the parties concerned to understand whether the decision was justified or not, the deciding organ is under no obligation to address each and every argument presented by the party concerned.

In T 802/97 the board held that if a decision included several grounds, it should meet the requirements of Art. 113(1) EPC 1973 with respect of each of the grounds. In the board's